

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

August 13, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Anderson v. Zealie, LLC 2023-01344258	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of an \$17,220 PAGA settlement. The court denies the motion without prejudice for the following reasons: <u>As to the settlement:</u> 1. In the April 2, 2026 order (ROA 140), the court stated that the Casado Declaration (ROA 137) was not signed. This

		issue has not been remedied, and the Second Supplemental Ortiz Declaration (ROA 155) also is not signed. 2. In the October 2, 2025 order (ROA 132), the court stated that plaintiffs had provided little, if any, case-specific valuation analysis. The court stated that plaintiffs must state the legal and factual basis for the claims, must identify the specific discovery (formal and informal) conducted to date, and must describe in detail counsel's investigation of the merits of the claims, and that plaintiffs also must provide specific information sufficient for the court to evaluate whether the consideration being received for the release of the aggrieved employees' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the litigation. In the April 2, 2026 order (ROA 14), the court stated that the unsigned Casado Declaration set forth various general statements (e.g., ROA 137, ¶¶ 22-28), but did not explain how plaintiffs' counsel valued the claims and why plaintiffs' counsel believes \$17,220 is fair, reasonable and adequate. The court noted that paragraph 20 of the Casado Declaration described an "individual's" total potential recovery, but did not identify the individual or explain why, if one individual's total potential recovery is \$470,970, the gross settlement amount is fair, reasonable and adequate to settle claims for 27 aggrieved employees. The court further noted that \$17,220 is neither 20% or 26% of \$470,970. The court stated that the Casado Declaration also did not explain why "contingency attorney's fees" in the alleged amount of \$230,332 and attorney costs in the amount of \$10,306 would be included as part of counsel's valuation of the claims. The court stated that, in short, plaintiffs still had not provided sufficient case-specific valuation analysis for the court to conclude the settlement is fair, reasonable and adequate, and that this was all the more the case as plaintiffs disclosed in the supplemental filing that they apparently agreed to individual settlements of their wage and hour claims ranging from approximately \$7,700 to \$29,000 per person, i.e., plaintiffs agreed to settle the case for \$140,000, allocating approximately 12% to the aggrieved employees (\$17,220) and 88% (\$122,780) to themselves. Carado Decl. Ex. 4. The court stated that the parties should address in the supplemental filing why this allocation is fair and reasonable to all affected. The Second Supplemental Ortiz Declaration does not sufficiently explain why the proposed settlement of \$17,220, which is approximately 8% of the newly-calculated maximum exposure of \$217,950 (Second Supp. Ortiz Decl. ¶ 14), is a fair, reasonable and adequate settlement. (Notably, plaintiffs' counsel states that the "maximum value" of the named plaintiffs' claims is \$196,623.50 (Second Supp. Ortiz Decl. ¶ 7); plaintiffs settled those claims for \$122,800, i.e., 62.5% of their "maximum value.") Plaintiffs have not
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		sufficiently addressed why the settlement allocation is fair and reasonable to the aggrieved employees. Plaintiffs' counsel's assertion that the named plaintiffs have agreed to "a much greater release of their claims, inclusive of 1542 waiver" (Second Supp. Ortiz Decl. ¶ 19) is inadequate to justify the seemingly unbalanced allocation, especially in light of the fact that plaintiffs are also "expected to receive their pro rata share of the PAGA Settlement" (Second Supp. Ortiz Decl. ¶ 20)—amounts that plaintiffs have not disclosed to the court. 3. In the October 2, 2025 order, the court stated that the "Released Parties" provision in (former) paragraph 1.29 (later paragraph 1.30) was overbroad because it included unrelated, ambiguous and/or unidentified third parties such as "partners, joint venturers . . . consultants, advisors, insurers, reinsurers and assigns, franchisors, and each of their past, present and future officers, investors, directors, executives, owners, trustees, agents, employees, attorneys, representatives, benefit plans sponsored or administered by the Released Parties, and any other persons or entities acting on behalf of or in concert with any of the foregoing." The court stated that the "Released Parties" provision in (then new) paragraph 1.30 remained overbroad. The court stated that the following phrases should be removed: "partners, joint venturers," "each of their past, present and future officers, investors, directors, executives, owners, trustees, agents, employees, attorneys, representatives," and "and any other persons or entities acting on behalf of or in concert with any of the foregoing." The "Released Parties" provision in (now) paragraph 1.29 of the second amendment to the settlement agreement remains overbroad, vague and ambiguous. The following phrases should be removed: "attorneys, representatives"; "operating during the PAGA Period"; and "and any and all subsidiaries of Defendant, and each of their past, present, and future parents, subsidiaries, divisions, predecessors, successors, and shareholders." If the parties contend the release should include specific subsidiaries of defendant, the settlement agreement should identify the specific subsidiaries by name and the parties should explain why each specifically-identified subsidiary should properly be included in the release. <u>As to the notice letter:</u> 4. The notice letter should be revised consistent with the above. 5. The word "Defendants" throughout the notice letter should be replaced with "Defendant," and each corresponding verb should be updated. 6. In the third sentence of the second paragraph, the word "the" should be inserted before "Aggrieved Employees" and
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		the word "in" should be inserted before "the Gross Settlement Amount." 7. In the first sentence of the third paragraph, "lawsuits" should be replaced with "lawsuit." 8. In the second sentence of the third paragraph, the word "amount" should be replaced with "number." 9. In the first sentence of the fourth paragraph, the word "employees" after "Aggrieved" should be capitalized. 10. In the fourth paragraph, the word "Plaintiff's" should be replaced with "Plaintiffs" in three places. 11. The "Released Parties" provision should be revised as stated above. <u>As to the proposed order and judgment (ROA 148):</u> 12. The proposed order and judgment should be revised consistent with the above. 13. In the April 2, 2026 order (ROA 140), the court stated that the parties should submit with their supplemental filing a separate copy of the proposed order and judgment, with the settlement agreement, any amendments thereto, and the notice letter attached as exhibits. This has not been done. 14. The second paragraph on page 3 states: "Plaintiff proposes that notice of entry of judgment be given to [the] Aggrieved Employees through the Settlement Administrator" by first-class mail to each Aggrieved Employee. The parties should confirm to the court that the settlement administrator has agreed to provide notice of entry of the Order and Judgment in this manner. If so, the second paragraph on page 3 should be replaced with the following: "The settlement administrator shall provide notice of entry of this Order and Judgment to the Aggrieved Employees by sending a copy of this Order and Judgment to each Aggrieved Employee by first-class mail at the most current address available after updating addresses through standard database searches, including the National Change of Address database, and reasonable skip-trace efforts for any returned mail." In sum, despite three attempts and two court orders (ROA 132, 140), plaintiffs have not demonstrated that the settlement is fair, reasonable and adequate to all affected. Plaintiffs also have not remedied other issues identified in the court's prior orders, as discussed above. Plaintiffs' motion for approval of the settlement is thus denied without prejudice. A status conference is scheduled for <u>November 19, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing.
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2	Cabuto v. Impact Housing US, LLC 2024-01427671	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$492,500 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$147,750.00 for attorneys' fees (not to exceed); \$20,000.00 for attorneys' costs (not to exceed); \$7,990.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$13,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 20, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendment thereto, notice packet (in English and Spanish)). The not-to-exceed amount of attorneys' fees stated in the notice and the proposed order should be revised to state the above not-to-exceed amount of attorneys' fees. The final approval hearing is scheduled for <u>December 17, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Clark v. Windsail Capital Group, LLC 2021-01191735	<u>Plaintiffs Growthpoint Global, Inc. and Preston Clark's Motion to Strike to Tax Costs Claimed by Arthur Cohen</u> Plaintiffs Growthpoint Global, Inc. and Preston Clark move to strike or tax costs claimed by Arthur Cohen. Cohen did not file an opposition. For the following reasons, plaintiffs' unopposed motion is granted. In his cross-complaint (filed May 7, 2021), Cohen asserted various claims against Clark and Growthpoint, among others. ROA 216. In his first amended complaint (filed October 4, 2021), Clark asserted various claims against Cohen. ROA 366. Clark dismissed his claims against Cohen without prejudice on May 5, 2022. ROA 711. Clark and Growthpoint did not name Cohen as a party in the operative third amended complaint. ROA 1478. Following a bench trial, as to plaintiffs' claims in the third amended complaint, the court entered judgment on March 12, 2026 in favor of defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, Matthew O'Rourke and James Pickell. ROA

3366. As to Cohen's third amended cross-complaint (ROA 1645), the court entered judgment in favor of cross-defendants Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Pickell, Growthpoint and Clark. ROA 3366. The judgment states: "Cohen shall take nothing as against Growthpoint or Clark." ROA 3366.

Cohen seeks \$3,259.80 in costs. ROA 3376. While the parties against whom Cohen seeks costs are not entirely clear from Cohen's costs memorandum, as plaintiffs move to strike or tax Cohen's claimed costs, the court gathers Cohen seeks reimbursement of his claimed costs from plaintiffs.

Plaintiffs argue Cohen's costs memorandum should be stricken because Cohen is not a prevailing party and because he filed the costs memorandum too late. Plaintiffs also argue Cohen did not provide any evidentiary support for the claimed costs and that the costs for which Cohen seeks reimbursement are improper.

A prevailing party is usually entitled as a matter of right to recover costs in any action or proceeding. Civ. Proc. Code § 1032(b). Growthpoint did not assert any claims against Cohen and Cohen did not prevail on his claims against Growthpoint. The court accordingly discerns no basis on which Cohen could be deemed a prevailing party against Growthpoint. Cohen did not file an opposition and thus has not identified such basis.

Cohen also did not prevail on his claims against Clark. As to Clark's claims against Cohen, Clark dismissed his claims against Cohen on May 5, 2022. ROA 711. Cohen's costs memorandum was due 15 days after service on May 5, 2022 of notice of entry of that dismissal. ROA 711; *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426 ("If notice of entry of dismissal is served, a dismissed defendant claiming costs must serve and file a memorandum of costs within 15 days after 'the date of service of written notice of entry of . . . dismissal'"); Cal. R. Ct. 3.1700(a)(1). "The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory." *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929. Cohen did not file his costs memorandum until March 24, 2026; the costs memorandum was therefore untimely.

Plaintiffs to give notice.

Plaintiffs Growthpoint Global, Inc. and Preston Clark's Motion to Strike to Tax Costs Claimed by Keith Henderson

Plaintiffs Growthpoint Global, Inc. and Preston Clark move to strike or tax costs claimed by Keith Henderson. Cohen did not file an opposition. For the following reasons, plaintiffs' unopposed motion is granted.

In his first amended complaint (filed October 4, 2021), Clark asserted various claims against Henderson. ROA 366. Clark dismissed his claims against Henderson without prejudice on April 8, 2022. ROA 603. Clark and Growthpoint did not name

		Henderson as a party in the operative third amended complaint. ROA 1478. Following a bench trial, as to plaintiffs' claims in the third amended complaint, the court entered judgment on March 12, 2026 in favor of defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, Matthew O'Rourke and James Pickell. ROA 3366. Henderson seeks \$709.58 in costs. ROA 3380. While the parties against whom Henderson seeks costs are not entirely clear from Henderson's costs memorandum, as plaintiffs move to strike or tax Henderson's claimed costs, the court gathers Henderson seeks reimbursement of his claimed costs from plaintiffs. Plaintiffs argue Henderson's costs memorandum should be stricken because Henderson is not a prevailing party and because he filed the costs memorandum too late. Plaintiffs also argue Henderson did not provide any evidentiary support for the claimed costs. A prevailing party is usually entitled as a matter of right to recover costs in any action or proceeding. Civ. Proc. Code § 1032(b). Growthpoint did not assert any claims against Henderson. The court accordingly discerns no basis on which Henderson could be deemed a prevailing party against Growthpoint. Henderson did not file an opposition and thus has not identified such basis. As to Clark's claims against Henderson, Clark dismissed his claims against Henderson on April 8, 2022. ROA 603. Henderson's costs memorandum was due 15 days after service of notice of entry of that dismissal. ROA 603; <i>Sanabria v. Embrey</i> (2001) 92 Cal.App.4th 422, 426 ("If notice of entry of dismissal is served, a dismissed defendant claiming costs must serve and file a memorandum of costs within 15 days after 'the date of service of written notice of entry of . . . dismissal'"); Cal. R. Ct. 3.1700(a)(1). "The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory." <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924, 929. Henderson did not file his costs memorandum until March 27, 2026; the costs memorandum was therefore untimely. Plaintiffs to give notice.
	Pickell v. Growthpoint Global, Inc. 2023-01355444	Off calendar.
4	Contreras v. Merical, LLC 2021-01214079	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for final approval of a \$3,725,000 class action and PAGA settlement. The court grants the motion as follows:

		\$5,000.00 for enhancement award to each plaintiff (\$10,000 total); \$1,117,500.00 for attorneys' fees; \$13,011.46 for litigation costs (see No. 1 below); \$12,950.00 for settlement administration costs; and \$150,000.00 total PAGA penalties (\$112,500.00 to the LWDA). 1. Plaintiffs' counsel seeks reimbursement for \$72.60 described as "Attorney Reimbursement-Mediation." Han Decl. (ROA 361) Ex. 6. Plaintiffs have not provided any information explaining or substantiating this charge. The court thus has no basis on which to conclude it was reasonably incurred. The court accordingly approves \$13,011.46 in costs (\$13,084.06 less \$72.60 = \$13,011.46). The final accounting hearing is scheduled for <u>June 17, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
5	Elias v. Aryzta, LLC 2020-01141103	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of an \$250,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$5,000.00 enhancement award to plaintiff Gray; \$75,000.00 for attorneys' fees; \$19,116.64 for attorneys' costs; \$5,000.00 for settlement administration fees; and \$145,883.36 total PAGA penalties (\$109,412.52 to LWDA and \$36,470.84 to aggrieved employees). Plaintiffs are ordered to submit <u>by August 20, 2026</u> a revised proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; any amendments thereto; and notice letter (in English and Spanish)). The notice letter should be revised as follows: a. To include the above amounts; b. To state the end date (December 5, 2023; see Defendant's Supp. Brief (ROA 271) at 2:1-3) of the "Release Period"/"Covered Period"/"PAGA Period" in the first sentence

		of the second paragraph on the section entitled "What is this case about?" on page 1. See Hawkins Decl. (ROA 215) Ex. 1 (¶ 1.19); c. To remove the extra "\$" in subsection a. at the top of page 2; and d. To correct the Net Settlement Amount and the amounts to be paid to the LWDA and the aggrieved employees stated in subsections c. and d. on page 2. The final accounting hearing is scheduled for <u>December 17, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
6	Little v. Quality Management Group, Inc. 2023-01325038	<u>Defendant Quality Management Group, Inc.'s Motion to Seal</u> Defendant Quality Management Group, Inc. moves to seal portions of a settlement agreement between plaintiff Amber Little and defendant Quality Management Group, Inc., which defendant lodged conditionally under seal in support of plaintiff's motion approval of a PAGA settlement. For the following reasons, defendant's motion to seal is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i> A party requesting that a court record be filed under seal "must file a motion or an application for an order sealing the record." Cal. R. Ct. 2.551(b)(1). "The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." <i>Id.</i> A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d). An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be

		placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> Defendant's counsel's declaration accompanying the motion to seal states that portions of the settlement agreement should be sealed because (i) "[t]he Confidential Settlement Agreement . . . is a <i>confidential</i> document as is the amount of the settlement consideration"; (ii) "[t]he Parties' interest in protecting the sensitive and confidential information contained in the Parties' confidential settlement agreement overrides the public's interest in access to the records Defendant seeks to seal"; and (iii) "[t]he information cannot be adequately guarded short of sealing the confidential settlement agreement[] and there are no less restrictive means to achieve the overriding interest." Greiving Decl. (ROA 123) ¶¶ 7-8 (<i>italics in original</i>). The reasons stated in counsel's declaration as purported support for sealing portions of the settlement agreement are conclusions, not facts. Counsel's declaration does not state facts sufficient to justify sealing the settlement agreement. In addition, as stated above, a court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. R. Ct. 2.551(a); <i>see also McNair v. National Collegiate Athletic Ass'n</i> (2015) 234 Cal.App.4th 25, 36 ("the mere agreement of the parties alone is insufficient to constitute an overriding interest to justify sealing the documents"). Furthermore, a settlement agreement that has a confidentiality provision cannot be sealed unless there is a showing of serious injury which would result from public disclosure. <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1281-82. Defendant has not submitted any evidence that serious injury would result from public disclosure of the settlement agreement. Defendant's motion does not provide a sufficient evidentiary basis for the court to make the required findings to seal the settlement agreement or to conclude that the settlement agreement filed in support of defendant's motion for approval of a PAGA settlement should be shielded from public view. <i>See, e.g., Overstock.com, Inc. v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 487 ("If the trial court fails to make the required findings, the order is deficient and cannot support sealing"). Defendant to give notice.
7	Ossipoff v. SoulCycle Inc. 2020-01146813	<u>Plaintiff Alexandra Ossipoff's Motion for Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$900,000 class action and PAGA settlement. The court has the following questions and comments: 1. What "Motion" is referred to in paragraph 7 of the Third Amendment? Third Supp. Chavos Decl. (ROA 356) Ex. H (¶ 7, at 6:20)?

		2. Has any interest accrued on the \$900,000 in settlement funds held by the settlement administrator? Third Amendment ¶ 1 (at 3:23-25). If so, how much? 3. The Third Amendment states: "Once the Settlement Administrator calculates the taxes that Defendant owes, Defendant will wire the additional funds to be paid by the Settlement Administrator to the appropriate government agencies." Third Amendment ¶ 1 (at 3:25-27). Why would these additional funds be funds "to be paid by the Settlement Administrator," as they are taxes owed by defendant (not by the settlement administrator)? And, by what deadline must defendant wire these additional funds? 4. In the April 2, 2026 order (ROA 351), the court stated that the statement in paragraph 13 of the Stipulation that the parties "will make the final decision" as to workweek and pay period disputes should be removed, as it is inconsistent with the foregoing sentences in the same paragraph. The court stated that the last sentence of paragraph 13 should be removed for the same reason. For unknown reasons, the parties have now removed the provision that the court may review any decisions regarding disputes made by the settlement administrator and reinserted the sentence stating, "The Claims Administrator's determination will be final and non-appealable." Third Supp. Chavos Decl. (ROA 356) Ex. H (¶ 9, at 7:15). That reinserted sentence should be removed, and the dispute procedure should be amended to state (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Section 5 (Option #1) of the notice should also be revised accordingly. 5. Did the parties did submit a clean version of the revised notice? 6. The following revisions should be made to the notice (Third Supp. Chavos Decl. Ex. G): - Subsection (2) in the box at the bottom of page 1 of the notice is not correct as to aggrieved employees and should be revised to make that clear. - The phrase "will pay" in the first sentence of section 4(H) should be replaced with "has paid." - Section 4(I) appears to be missing several words. In addition, the phrase "the Claims Administrator shall receive cost" does not make sense and should be revised.
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		d. The word “un-cashed” in section 4(K) should be replaced with “uncashed.” e. The parties did not submit a Notice of Settlement Payment form with the supplemental papers. In addition, rather than including the PAGA pay period dispute form as part of the Notice of Settlement Payment form, as stated in the April 2, 2026 order (ROA 351), the parties for unknown reasons have included the PAGA pay period dispute form as part of the class notice. This should be revised. f. The word “and” between “Class” and “Settlement” in the first sentence of Option #2 at the top of page 7 should be removed. g. The words “releases” and “discharges” in the first sentence of section 6 should be replaced with “release” and “discharge.” h. In the April 2, 2026 order (ROA 351), the court stated that the following phrase (and all text after it) should be removed from the objection form: “If you are represented by an attorney or law firm, please provide the following information.” This has not been done. i. In the April 2, 2026 order, the court stated that the methods of submitting the objection form stated on the form are inconsistent with the settlement agreement and should be revised. This has not been done. 7. Copies of the settlement agreement and any amendments thereto and the class notice and its accompanying forms should be attached as exhibits to the proposed order. The hearing on plaintiff’s motion for preliminary approval is continued to <u>December 10, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than “amended settlement agreement,” to streamline the court’s review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	Rychlik v. Day & Nite Doors, Inc.	<u>Plaintiff’s Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for

	2021-01207960	approval of an \$130,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to each plaintiff; \$32,500.00 for attorneys' fees; \$4,805.76 for attorneys' costs; \$2,650.00 for settlement administration fees; and \$90,044.24 total PAGA penalties (\$67,533.18 to LWDA). Plaintiff is ordered to submit <u>by August 20, 2026</u> a revised proposed order and judgment <u>with all exhibits attached</u> (fully executed copy of October 2025 amendment to settlement agreement; fully executed copy of second amendment to settlement agreement; and notice letter). The portion of paragraph (n) of the proposed order and judgment referring to a dismissal should be removed. In addition, the notice letter should be revised as follows: 1. The first sentence of the first paragraph of section A should end after "(the "Action")". The word "which" following "(the "Action")" should be removed and be replaced with "PAGA." I.e., the first two sentences of the first paragraph of section A should state: "You have received this Notice because you are an Aggrieved Employee in this Private Attorney General Act ("PAGA") Action, Mark Rychlik v. Day & Nite Doors, Inc., et al., Orange County Superior Court Case No. 30-2021-01207960-CU-OE-CXC (the "Action"). PAGA authorizes "Aggrieved Employees" to file lawsuits to recover civil penalties on behalf of themselves, other employees, and the State of California for Labor Code violations committed by their employer." 2. The last sentence of the first paragraph of section A should be removed, as the method of calculating the aggrieved employees' individual payments is stated elsewhere in the notice letter. 3. The first sentence of the second paragraph of section A should include plaintiff's name and the names of the defendants. 4. In the last sentence of the third paragraph of section A, the phrase "Plaintiff's litigation costs" should be replaced with "PAGA Counsel's litigation costs." 5. The stray parentheses at the end of the fourth paragraph on page 2 of the notice letter should be removed. 6. Other than the first sentence, all of the fifth paragraph of page 2 of the notice letter should be removed, as should the phrase ("The release provisions of the Settlement Agreement are as follows:") that follows it.
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		7. The first sentence of the second paragraph of section B should be removed. 8. The following phrase should be removed from the second sentence of the second paragraph of section B: "portion of the proposed." 9. The word "Defendant" in the third sentence of the second paragraph of section B should be replaced with "Defendants." The final accounting hearing is scheduled for <u>November 18, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the status of defendants' settlement payments, the actual amounts paid to the aggrieved employees, and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
9	Deatherage v. Stifel, Nicolaus & Company, Incorporated 2023-01344151	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$300,000 PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief. 2. Were the motion papers served on all parties and the LWDA? Attorney Whitehead states in his declaration that "[t]he LWDA has been provided with notice of this motion and the Settlement," but the court's file does not contain any documents showing that the LWDA or defendant were provided notice of the motion. Whitehead Decl. (ROA 142) ¶ 20. Plaintiff must file with the court a proof of service identifying the specific documents served on all parties and the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u>

		3. Is the estimated average individual PAGA payment \$67.72 (Brief (ROA 138) at 10:7; Bylsma Decl. (ROA 144) ¶ 57), \$79.50 (Whitehead Decl. (ROA 142) ¶ 23), or some other amount? In addition, the parties should provide the estimated high and low individual PAGA payments. 4. Plaintiff should provide her anticipated individual PAGA payment. In addition, plaintiff seeks \$22,000 from the gross settlement amount (\$17,000 for an "Individual Settlement" and \$5,000 for a "PAGA Representative Service Award"). Settlement Agreement ¶ 3.2.2.1. Absent unique circumstances, the court is unlikely to approve a payment (other than her individual PAGA payment) to plaintiff from the gross settlement amount that exceeds \$2,500. Plaintiff should address in the supplemental filings whether any such unique circumstances exist here. 5. The PAGA Period in paragraph 1.21 needs a firm end date to enable the court to evaluate the fairness and reasonableness of the settlement. 6. The "Released Parties" provision in paragraph 1.29 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "sister companies," "affiliated companies," "insurers," "agents," "attorneys" and "partners." 7. The parties should provide a declaration demonstrating the propriety of the proposed cy pres recipient (Settlement Agreement ¶ 4.4.3) and explaining why a cy pres distribution is appropriate here, as opposed to, e.g., distributing any unclaimed funds to the State Controller's Office in the aggrieved employee's name. The parties and counsel must also submit declarations stating whether they have any interest in the proposed cy pres recipient, including in its governance. 8. If the parties intend any of the releases in paragraph 5 to apply to the Aggrieved Employees, the phrase "Aggrieved Employees" should be inserted in paragraph 5 after "Plaintiff" and before "will release claims." 9. The second sentence of paragraph 8 should be revised, including removing subsection (b), as the court will not approve a settlement that permits defendant to shorten the PAGA Period. 10. The parties (plaintiff and defendants) should advise, in declarations filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declarations shall also state the name and case number of any such case and the
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		procedural status of that case, and describe the impact of the settlement on that case. 11. Plaintiff's counsel seeks attorneys' fees totaling 35% of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here. 12. Plaintiff's counsel from both firms must provide the position (e.g., partner, associate, etc.), years of practice, experience in PAGA actions, the hourly billing rate, and statement that the hourly rate is the reasonable and usual hourly rate charged by that attorney for similar services for each of the timekeepers listed on the timesheets. Plaintiff's counsel should also provide the total number of hours worked by each attorney on the case. 13. Plaintiff's counsel should state whether there is a fee-splitting agreement between Schneider Wallace Cottrell Kim LLP and W Employment Law, APC, or confirm none exists. 14. Plaintiff's counsel either seeks \$30,000 or \$34,865.85 in costs. See Brief (ROA 138) at 15:12-13 ("Here, PAGA Counsel together have incurred \$34,865.85, more than the \$30,000 requested") (bold and italics in original). Plaintiff's counsel should clarify in the supplemental filing the amount of costs sought. In addition, plaintiff's counsel (SWCK) must submit invoices substantiating the mediation charges (\$13,000 and \$10,500). Plaintiff's counsel (SWCK) should also explain why the arbitration fee (\$2,000) is properly reimbursed from the gross settlement amount. Copying and printing charges (SWCK) are not recoverable and should be removed. Plaintiff's counsel (W Employment Law, APC) should submit invoices substantiating the two \$2,974.43 charges on W Employment Law, APC's costs list. Plaintiff's counsel should provide evidence substantiating the charges for "Lexis-Nexis Document Retrieval." 15. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement funds. The parties should also submit a copy of the settlement administrator's invoice. (The text of the Lawrence Declaration (ROA 140) appears to be the text of plaintiff's notice of motion.) <u>As to the notice:</u> 16. The parties did not submit a notice letter to be sent to the aggrieved employees along with the settlement checks. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint;
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		(iii) describe the scope of released claims; (iv) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (v) explain how the individual payments will be calculated; (vi) describe the recipient's responsibility for any taxes payable on the amount received; and (vii) notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 17. The parties should state whether the notice letter should be provided in any language other than English. If so, a certified copy of the translated notice should be attached as an exhibit to the proposed order and judgment. <u>As to the proposed order and judgment (ROA 136):</u> 18. The proposed order and judgment should be revised consistent with the above. 19. Counsel information should be removed from the caption page of the proposed order and judgment. 20. The proposed order and judgment should be styled as an "order and judgment." 21. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). Paragraph 1 of the proposed order and judgment should be revised accordingly. 22. The proposed order and judgment should identify the Aggrieved Employees and the PAGA period. 23. The proposed order and judgment should state the gross settlement amount. 24. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 25. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 26. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the
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		other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>December 10, 2026 at 2:00 p.m.</u> in department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
11 2:30 p.m.	Doe J.A. v. Thompson 2025-01510207	Off calendar.
12 2:30 p.m.	Herrick v TTE Technology, Inc. 2025-01535413	<u>Attorney Travis E. Stoller's Motion to Appear Pro Hac Vice</u> Attorney Travis E. Stoller moves to appear pro hac vice for plaintiff Stephan Herrick. For the following reasons, the unopposed motion is granted. The application is verified and/or supported by a declaration(s). It sets forth the applicant's residence and office addresses and California counsel's contact information. It states the applicant's courts and dates of admission and attests to the applicant's good standing. The application states there has been one prior application in a California federal court in the last two years. The accompanying Persinger Declaration states the application has been served on the State Bar of California and that the application fee has been paid. Cal. R. Ct. 9.40(c)-(e). Plaintiff to give notice. <u>Attorney Andrea R. Gold's Motion to Appear Pro Hac Vice</u> Attorney Andrea R. Gold moves to appear pro hac vice for plaintiff Stephan Herrick. For the following reasons, the unopposed motion is granted. The application is verified and/or supported by a declaration(s). It sets forth the applicant's residence and office addresses and California counsel's contact information. It states the applicant's courts and dates of admission and attests to the applicant's good standing. The application states there has been one prior application in a California state court in the last two years and nine prior applications in California federal courts in the last two

		years. The accompanying Persinger Declaration states the application has been served on the State Bar of California and that the application fee has been paid. Cal. R. Ct. 9.40(c)-(e). Plaintiff to give notice.
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